

25CV06934 Braulio Gallegos Rodriguez et al vs American Honda Motor Co Inc

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-20

Motion: Motion: Compel Further Responses to Pltiff's Req for Production of Documents Set One

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv06934>

Source SHA-256: 7e957005fc82d9cc23ed685223c90c26279f042fa60a227cc7a4d6cf3aff4e84

Tentative Ruling: Braulio Gallegos Rodriguez et al vs American Honda Motor Co Inc

Case Number

25CV06934

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/20/2026 - 10:00

Nature of Proceedings

Motion: Compel Further Responses to Pltiff's Req for Production of Documents Set One

Tentative Ruling

Braulio Gallegos Rodriguez, et al. v. American Honda Motor Co., Inc.

Case No. 25CV06934

Hearing Date: July 20, 2026

HEARING: Plaintiffs' Motion to Compel Further Responses to Requests for Production of Documents, Set One

ATTORNEYS: For Plaintiffs Braulio Gallegos Rodriguez and J. Santos Torres Echeverria: Kevin Y. Jacobson, Ryan Ardi, Quill & Arrow LLP

For Defendant American Honda Motor Co., Inc.: Soheyl Tahsildoost, Kevin D. Zipser, Theta Law Firm LLP

TENTATIVE RULING:

Plaintiff's motion to compel further responses to requests for production of documents, set one, is granted in part and denied in part as follows:

1. The motion to compel further responses to requests for production Nos. 1 through 29 is denied. However, defendant American Honda Motor Co., Inc. shall produce all responsive documents, that it stated would be produced, no later than August 10, 2026.

2. The motion to compel a further response to request for production No. 30 is granted as modified. Plaintiff shall provide a further response and produce responsive documents as if the request requires:

"All DOCUMENTS, in the form of a list or compilation, of other Customer Complaints in YOUR electronically stored information of database(s) that are SUBSTANTIALLY SIMILAR to complaints made by Plaintiffs with respect to the SUBJECT VEHICLE in other 2024 Honda Prologue vehicles.

SUBSTANTIALLY SIMILAR shall mean complaints pertaining to noises or other issues with turning mechanisms that resulted in at least two repair attempts of the front left, the front right, or both front axels."

The further response and responsive documents shall be served no later than August 10, 2026.

Background:

This action commenced on November 4, 2025, by the filing of the complaint by plaintiffs Braulio Gallegos Rodriguez and J. Santos Torres Echeverria (collectively, "plaintiffs") against defendant American Honda Motor Co., Inc. ("AHM") for violations of the Song-Beverly Act related to a leased 2024 Honda Prologue (the "Subject Vehicle"). Plaintiffs allege that the Subject Vehicle had defects and nonconformities to the suspension and steering system, and that AMH has failed to remedy the defects, promptly replace the Subject Vehicle, or to promptly make restitution.

On December 11, 2025, AHM answered the complaint with a general denial and 46 affirmative defenses.

On January 28, 2026, plaintiffs served discovery, including requests for production of documents ("RFPs"), on AHM. (Ardi decl., ¶ 14 & Exh. 1.)

On March 3, 2026, AHM provided objection only responses to the RFPs. (Ardi decl., ¶ 15 & Exh. 2.) On April 28, 2026, AHM served supplemental responses to the RFPs. (Ardi decl., ¶ 16 & Exh. 3.)

Plaintiffs now move "for an order to strike [AHM's] objections and compel further responses to [the RFPs], Nos. 1 through 30. (Notice of Motion, p. 2, ll. 6-9.)

AHM opposes the motion.

Analysis:

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

“A trial court must be mindful of the Legislature’s preference for discovery over trial by surprise, [and] must construe the facts before it liberally in favor of discovery. . .” (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

Code of Civil Procedure, section 2031.010 provides, in pertinent part:

“(a) Any party may obtain discovery . . . by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of the party on whom the demand is made.

“(b) A party may demand that any other party produce and permit the party making the demand, or someone acting on the demanding party’s behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made.”

“The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

“(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling . . .

“(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item, or

“(3) An objection to the particular demand for inspection, copying, testing, or sampling.” (Code Civ. Proc. § 2031.210, subd. (a).)

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

A motion to compel further responses to RFPs "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

Separate Statement in Support of Motion

"A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

- (1) The text of the request, interrogatory, question, or inspection demand;
- (2) The text of each response, answer, or objection, and any further responses or answers;
- (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;
- (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;
- (5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and
- (6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document." (Cal. Rules of Court, rule 3.1345(c).)

Plaintiffs' separate statement begins with an "introduction" and a lengthy discussion of various objections, whether or not the objections were made by AHM. Those sections are followed by a section that is titled "Defendants Responses Do Not Comply With the Code." That section largely misrepresents what AHM's responses consist of. A final preliminary section contains definitions. All of the preliminary sections are clearly a cut and paste job (the court has seen the exact sections in other motions to compel filed by plaintiffs' counsel) and do not directly address the RFPs at issue. The specific requests are not discussed until page 16.

RFP Nos. 1 through 14:

Plaintiffs argue that these RFPs pertain to the "subject vehicle." While this is largely true, there is an exception in RFP No 2, which relates to affirmative defenses rather than the subject vehicle. In any case, that is an exception that does not change the analysis.

Plaintiffs make a single argument, for all of the RFPs, as to why further responses should be ordered. That argument is included under RFP No. 1 and then, subsequently, plaintiffs incorporate that argument by reference. The entirety of the argument is:

"This request seeks documents and information concerning the SUBJECT VEHICLE itself, defined as the 2024 Honda Prologue, bearing VIN 3GPKHVRJ5RS532696, which is the subject of this lawsuit. These documents are indisputably relevant to Plaintiffs' SBA claims. See, *Krotin v. Porsche Cars N. Am., Inc.*, 38 Cal.App.4th 294, 303 (1995) (an automobile manufacturer's 'dealers service records' are probative of whether a particular vehicle is defective). See, *Jensen v. BMW of N. Am., LLC*, 328 F.R.D. 557, 562 (S.D. Cal. 2019) ('records concerning the specific vehicle at issue' are relevant to proving liability under the SBA).

"To the extent Defendant contends this Request may somehow call for a premature disclosure of expert information, the fact remains that nothing in this Request calls for information generated by Defendant's expert witness (if any such expert exists, at this time). Accordingly, Defendant should be ordered to fully comply with this request and produce all responsive documents, without objection.

"Furthermore, Defendant's boilerplate objections are without merit.

"Finally, Defendant's response does not comply with the Code, as explained herein.

"Accordingly, the Court is respectfully asked to compel Defendant to serve a further, Code-compliant response and to produce all responsive documents to this Request."

RFP Nos. 15 through 22:

Plaintiffs argue that these RFPs pertain to AHM's "policies and procedures for handling Song-Beverly Cases."

Plaintiffs make a single argument, for all of the RFPs, as to why further responses should be ordered. That argument is included under RFP No. 15 and then, subsequently, plaintiffs incorporate that argument by reference. The entirety of the argument is:

"This Request seeks documents and information concerning Defendant's Lemon Law recall policies and procedures. Courts have repeatedly found these documents relevant to SBA claims. See, *Jensen v. BMW of N. Am., Inc.*, 35 Cal.App.4th 112, 136 (1995), as modified on denial of reh'g (June 22, 1995) ('whether the manufacturer had a written policy on the requirement to repair or replace' is one of 'the factors to be considered by the jury' concerning whether defendant willfully violated the SBA); *Kwan v. Mercedes-Benz of N. Am., Inc.*, 23 Cal.App.4th 174, 186 (1994) ('Whether the lack of a written policy demonstrates [defendant's willful violation of the SBA] is a question to be answered by a properly instructed jury').

"To the extent Defendant contends this Request may somehow call for a premature disclosure of expert information, the fact remains that nothing in this Request calls for information generated by Defendant's expert witness (if any such expert exists, at this time). Accordingly, Defendant should be ordered to fully comply with this request and produce all responsive documents, without objection.

"Furthermore, Defendant's boilerplate objections are without merit, as explained herein and above.

"Finally, Defendant's response does not comply with the Code, as explained herein.

"Accordingly, the Court is respectfully asked to compel Defendant to serve a further, Code-compliant response and to produce all responsive documents to this Request."

RFP Nos. 23 through 29:

Plaintiffs argue that these RFPs pertain to AHM's "warranty policy and procedure for handling."

Plaintiffs make a single argument, for all of the RFPs, as to why further responses should be ordered. That argument is included under RFP No. 23 and then, subsequently, plaintiffs incorporate that argument by reference. The entirety of the argument is:

"This request seeks the production of Defendant's Warranty Policy and Procedure Manual provided to its repair facilities including, but not limited to, Defendant's written warranties and the policies and procedures related to what is covered under said warranties, how coverage is determined, training related to warranty coverage, Defendant's policies and procedures relating to how Defendant handles customer complaints, and whether Defendant abides by its affirmative duties to repurchase defective vehicles under the SBA.

"To the extent Defendant finds these requested documents irrelevant to this case, Defendant provides no basis for this conclusion. In fact, numerous California court decisions in individual Lemon Law cases have held that a defendant's written statements of policy and/or procedures used to evaluate customer requests for repurchase or replacement of a defective vehicle are highly relevant and must be voluntarily exchanged in discovery. See, e.g., *Jensen v. BMW of N. Am., Inc.*, 35 Cal.App.4th 112, 136 (1995).

"To the extent Defendant contends this Request may somehow call for a premature disclosure of expert information, the fact remains that nothing in this Request calls for information generated by Defendant's expert witness (if any such expert exists, at this time). Accordingly, Defendant should be ordered to fully comply with this request and produce all responsive documents, without objection.

"Furthermore, Defendant's boilerplate objections are without merit, as explained herein and above.

"Finally, Defendant's response does not comply with the Code, as explained herein.

"Accordingly, the Court is respectfully asked to compel Defendant to serve a further, Code-compliant response and to produce all responsive documents to this Request."

RFP No. 30 will be discussed below.

With the exception of the separate statement as it pertains to RFP No. 30, plaintiffs' separate statement is deficient for at least two separate reasons.

First, the separate statement does not contain the entirety of the responses in dispute as required by California Rules of Court, rule 3.1345(c)(2). Secondly, the factual and legal reasons for compelling further responses are not set forth as to each of the responses as required by California Rules of Court, rule 3.1345(c)(3). Rather, they are improperly set forth in a single place and incorporated by reference whether or not the arguments actually pertain to the specific RFP in dispute. Either one of these deficiencies is grounds for denying the motion.

Further, plaintiffs' "reasons to compel further response and production" makes little sense. The arguments do not appear directed to the specific responses.

For example, RFP No. 1 seeks: "All DOCUMENTS regarding the SUBJECT VEHICLE that are within YOUR Customer Relations Center."

The supplemental response to RFP No. 1 is:

"AHM objects to this request to the extent it may call for information that is confidential, commercially sensitive, and/or proprietary. AHM further objects to the extent this request asks AHM to respond on behalf of any other entity.

Subject to and without waiving the above objections, the requested production will be allowed in whole and all documents in the demanded categories that are in the possession, custody, or control of AHM will be included in the production, including the ACS File. AHM will also produce its CRRS Reports, which contain information that is confidential, commercially sensitive, and/or proprietary, pursuant to the entry of an appropriate protective order." [Note: The preliminary objections are taken from the actual responses that are attached to plaintiffs' counsels' declaration because they were not included in the separate statement, in violation of the requirement that "the separate statement shall be full and complete so that no person is required to review any other documents in order to determine the full request and the full response.")

The reasons to compel a further response, as set forth in full above, first states that the documents are relevant to this action. The court agrees with this statement. Facially, documents pertaining to the Subject Vehicle are relevant and discoverable. However, the reasons then discuss how an objection that the request calls for a "premature disclosure of expert information" is improper. There is simply no objection that the request calls for premature disclosure of expert information. Then, the reasons make conclusory statements that the objections are without merit and that the response does not comply with the code. Wholly absent from the reasons to compel a further response are any reasons why the response does not comply with the code. AHM stated that "the requested production will be allowed in whole." In other responses to RFPs, AHM states things such as, following a diligent search and reasonable inquiry, they are unable to comply because no such document exists or has ever existed. These appear to be code-compliant responses.

Every one of the RFPs addressed in the separate statement, other than RFP No. 30, are similarly deficient. Plaintiffs have failed to file a code compliant separate statement and have failed to meet their burden of showing how the responses are in any way deficient. As such, the motion, as to RFP Nos. 1 through 29 will be denied.

However, it is unclear whether AHM has produced the responsive documents that it has indicated would be produced. In some portions of plaintiffs' papers, they state that no responsive documents have been produced. (Ardi decl., ¶ 25.) In others, it states that "not all . . . documents . . . have been produced." (Reply, p. 1, ll. 27-28.) To the extent that AHM stated that it would produce all responsive documents, but have not produced them, it will be ordered to do so.

RFP No. 30

RFP No. 30 seeks:

"All DOCUMENTS, in the form of a list or compilation, of other Customer Complaints in YOUR electronically stored information of database(s) that are SUBSTANTIALLY SIMILAR to complaints made by Plaintiffs with respect to the SUBJECT VEHICLE in other 2024 Honda Prologue vehicles.

" 'SUBSTANTIALLY SIMILAR' shall mean similar customer complaint that would be the same nature of the reported system, malfunction, trouble code, Technical Service Bulletin Recommendation, dashboard indicator light, or other manifestation of a repair problem, as description listed in any warranty summary or repair order for the SUBJECT VEHICLE. [The customer complaints in this matter can be found in Defendant's warranty history/summary and within the line items of the repair orders created at Defendant's authorized repair facility. If YOU are having issues determining Plaintiffs' Complaints, Plaintiffs [are] willing to meet and confer and list out the specific complaints and the language used to describe them. This should not include any routine or scheduled maintenance items.]"

AHM responded:

"AHM objects to this request as vague, ambiguous, overly broad, and as asking for information that is not relevant to the subject matter of this litigation and not reasonably calculated to lead to the discovery of admissible evidence including but not limited to that it does not take into consideration the statutory construct of the Song-Beverly Consumer Warranty Act. Moreover, the request fails to describe with reasonable particularity the documents or categories of documents being requested, in violation of Code of Civil Procedure, Section 2031.030(c)(1). In addition, the term 'complaints made by Plaintiff' is not defined, described, or otherwise explained in this request and, without definition, description, or explanation is vague, ambiguous and the information referred to or sought cannot be reasonably determined, without speculation. AHM objects to the extent this request asks for information that is protected by the right to privacy. AHM objects to this request to the extent it may call for information that is confidential, commercially sensitive, and/or proprietary. AHM further objects to the extent this request asks AHM to respond on behalf of any other entity."

Plaintiffs' reasons to compel a further response and production of documents includes:

"The prevailing authority, fully briefed in the Memorandum of Points and Authorities filed concurrently, makes clear that the scope of discovery in Lemon Law cases encompasses documents that relate to similar defects experienced by other consumers who own or lease related vehicles to the Subject Vehicle. See, e.g., *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154-55 (affirming admissibility of expert testimony regarding similar problems in related vehicles with same model transmission as that driven by plaintiffs).

"The Dolen court went on to hold that evidence of similar defects in related vehicles is not only relevant, but may also be admissible at trial. *Id.* at 143-144, 153 (evidence of special service bulletins issued before plaintiffs bought his truck and evidence of similar transmission problems in other trucks were relevant and admissible); see, also, *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 973, 978-979, 986 ('Doppes') (documents of warranty complaints, service histories, and employee records concerning the subject defect in all affected vehicles and the company's responses and instructions regarding cure were discoverable and relevant as to the issue of defendant's good faith treatment of the problem).

"The relevancy of such evidence has also been confirmed in more recent Court of Appeal cases. See, e.g., *Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 344, 347 (finding internal emails regarding a defendant's awareness of failed repairs in related vehicles is probative as to whether that defendant acted in good faith on the subject of honoring its express warranty as to the subject vehicle, thereby potentially exposing defendant to a civil penalty).

"To the extent this request seeks agreements between Defendant and Defendant's authorized dealer, who is an agent of Defendant for purposes of the sale/lease, courts have repeatedly found that these documents are relevant to fraud claims and to the issue of punitive damages. See, e.g., *Dhital v. Nissan N. Am., Inc.*, 300 Cal.Rptr.3d 715, 727-28 (2022), review filed (Dec. 2, 2022) (reversing trial court's sustaining of Nissan's demurrer as to plaintiffs' fraudulent inducement by concealment claim and referring to New York courts adopting 'an objective definition of deceptive acts and practices, whether representations or omissions, limited to those likely to mislead a reasonable consumer acting reasonably under the circumstances.' *Id.*" (Emphasis omitted.)

AHM's opposition argument for why a further response should not be compelled is essentially that "SUBSTANTIALLY SIMILAR" expands the scope of the request by sweeping into the request any complaint that shares the same "nature of the reported system, malfunction, trouble code, Technical Service Bulletin Recommendation, dashboard indicator light, or other manifestation of a repair problem." AHM argues that the request unreasonably requests documents concerning complaints about vehicles that were successfully repaired on the first attempt, when the Song-Beverly Act only allows actions against a manufacturer that has failed to repair a vehicle after a reasonable number of attempts. AHM then argues that even if the request was narrowed, plaintiffs would not be entitled to the requested information because this case is solely about plaintiffs' vehicle rather than other vehicles.

As phrased, RFP No. 30 seeks too broad of a category of documents. Plaintiffs have failed to explain why they are entitled to documents reflecting all complaints, even if the complaint was resolved on the first repair attempt. Additionally, the definition of substantially similar is overbroad. In this action, Plaintiffs allege that they presented the Subject Vehicle with a "clicking noise recurrently emitting while turning." (Compl., ¶ 12.) By way of their reply brief, plaintiffs reiterate that those are their

complaints and clarify that there was “a clacking/clicking noise emanating from the front axle area during turning and acceleration, including repairs involving the replacement of the front left and right axles.” (Reply, p. 2, ll. 13-15.) The court will modify and limit the request to require only the production of relevant documents. AHM will be ordered to provide a further response to RFP No. 30, and produce responsive documents, as though the request were as follows:

““All DOCUMENTS, in the form of a list or compilation, of other Customer Complaints in YOUR electronically stored information of database(s) that are SUBSTANTIALLY SIMILAR to complaints made by Plaintiffs with respect to the SUBJECT VEHICLE in other 2024 Honda Prologue vehicles.

SUBSTANTIALLY SIMILAR shall mean complaints pertaining to noises or other issues with turning mechanisms that resulted in at least two repair attempts of the front left, the front right, or both front axels.”

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US